

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1204
(Representatives Schatz, Dressler, Fisher, Frelich, Meier, Toman)
(Senators Luick, Van Oosting)

AN ACT to amend and reenact section 16.1-10-04 of the North Dakota Century Code, relating to the publication of false information in political advertisements; and to provide a penalty.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Section 16.1-10-04 of the North Dakota Century Code is amended and reenacted as follows:

16.1-10-04. Publication of false information in political advertisements - Penalty.

1. A person is guilty of a class A misdemeanor if ~~that~~the person knowingly, or with reckless disregard for its truth or falsity, publishes ~~any~~an political advertisement or news release ~~that contains any~~containing an assertion, representation, or statement of fact, including information concerning a candidate's prior public record, which is untrue, deceptive, or misleading, ~~whether~~ on behalf of or in opposition to any candidate for public office, initiated measure, referred measure, constitutional amendment, or any other issue, question, or proposal on an election ballot, ~~and whether the publication~~which is published by radio, television, newspaper, text message, telephone call, pamphlet, folder, display cards, signs, posters, billboard advertisements, websites, electronic transmission, social media, or ~~by~~ any other public means or commercial medium.
2. This section does not apply to a newspaper, television or radio station, or other commercial medium that is not the source of the political advertisement or news release.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1204.

House Vote: Yeas 77 Nays 14 Absent 3

Senate Vote: Yeas 45 Nays 1 Absent 1

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State